

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE R. BROOKE JACKSON

Courtroom Deputy: Laura Galera
Court Reporter: Kara Spitler

Date: December 18, 2012

Civil Action No. 11-cv-00303-RBJ-MEH

Parties:

Counsel:

ST. PAUL SOBER LIVING, LLC,
CHRIS EDRINGTON,
DONALD EDRINGTON,
ADAM TIPTON,
ALEX COLINS,

Steven Polin

Plaintiffs,

v.

GARFIELD COUNTY, BOARD OF
COUNTY COMMISSIONERS,

Cassandra Coleman

Defendant.

COURTROOM MINUTES

Trial to Jury - Day One.

8:57 a.m. Court in session.

Jury panel not present.

Appearances of counsel.

Parties have stipulated to Defendant's Exhibits A, B, C, D, and E and Plaintiffs' Exhibits 1, 6, 9, 11 and 15.

Defendant's Exhibits A, B, C, D, E and Plaintiffs' Exhibits 1, 6, 9, 11 and 15 are ADMITTED.

Defense counsel objects to Plaintiffs' Exhibits 22-41.

Discussion regarding exhibits.

Discussion regarding length of trial and jury instructions.

Twenty-three (23) potential jurors are brought to the court.

Preliminary remarks by the Court.

Court staff, attorneys, parties and witnesses are introduced.

Jury panel is sworn for voir dire.

The Court seats thirteen potential jurors.

Preliminary instructions by the Court.

9:46 a.m. Voir dire by the Court.

10:07 a.m. Court in recess.

11:12 a.m. Court in session.

Jury present.

Bench conference.

11:14 a.m. Continued voir dire by the Court.

11:20 a.m. Voir dire by Mr. Polin.

11:40 a.m. Voir dire by Ms. Coleman.

Excused for Cause:

1. 100236482
2. 100210410

Plaintiffs' Peremptory Challenges:

1. 100231953
2. 100216733
3. 100203868

Defendant's Peremptory Challenges:

1. 100224127
2. 100216058
3. 100226502

Seven jurors sworn to try the case:

1. 100229050
2. 100213798
3. 100225875
4. 100228675
5. 100235012
6. 100234536
7. 100223986

Court instructs the jury.

12:21 p.m. Court in recess.
1:22p.m. Court in session.

Jury present.

Opening statement by Mr. Polin.

1:48 p.m. Opening statement by Ms. Coleman.

Plaintiffs' witness, Alex Collins, called and sworn.

2:02 p.m. Direct examination of Mr. Collins by Mr. Polin.

2:35 p.m. Cross examination of Mr. Collins by Ms. Coleman.

2:37 p.m. Redirect examination of Mr. Collins by Mr. Polin.

Witness excused.

Plaintiffs' witness, Donald Edrington, called and sworn.

2:38 p.m. Direct examination of Mr. Edrington by Mr. Polin.

Plaintiffs' Exhibit 2 is ADMITTED.

2:53 p.m. Voir dire by Ms. Coleman as to Plaintiffs' Exhibit 3.

Plaintiffs' Exhibit 3 is ADMITTED over defendant's objection.

2:58 p.m. Court in recess.

3:18 p.m. Court in session.

Jury is present.

Continued direct examination of Mr. Edrington by Mr. Polin.

Plaintiffs' Exhibit 25 is ADMITTED.

Plaintiffs' Exhibits 26, 27 and 28 are ADMITTED in their entirety.

3:41 p.m. Voir dire by Ms. Coleman as to Plaintiffs' Exhibit 13.

Defendant's objection to Plaintiffs' Exhibit 13 is SUSTAINED.

3:46 p.m. Cross examination of Mr. Edrington by Ms. Coleman.

4:12 p.m. Redirect examination of Mr. Edrington by Mr. Polin.

Plaintiffs' witness, Adam Tipton, called and sworn.

4:22 p.m. Direct examination of Mr. Tipton by Mr. Polin.

4:46 p.m. Cross examination of Mr. Tipton by Ms. Coleman.

Witness excused.

Jury excused, to return at 9:00 a.m. tomorrow.

Counsel are instructed to be present tomorrow at 9:00 a.m.

4:55 p.m. Court in recess.

Trial continued.

Total Time: 05:32